

such, there is no way for them to contend they were financially impacted by it. If they are claiming that their injury is the money spent on litigation related to the accident, *Cal. Med.* disavows this argument, noting that an “organization cannot, of course, manufacture the injury necessary to maintain a suit from its expenditure of resources on that very suit.” (*Id.* at 1099.) Instead, standing must arise “independent of costs incurred in UCL litigation or preparations for such litigation.” (*Id.* at 1082.)

Based on the above, the FAC fails to show that Plaintiffs have standing to bring a UCL claim and as such, Defendant’s demurrer to the third cause of action is **sustained**.

Leave to Amend

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

As with the last demurrer by Universal, Plaintiffs obliquely request leave to amend but fail to make any effort to show how they can amend to properly state a cause of action. A trial court does not abuse its discretion in denying leave to amend when the moving party “merely stated in its opposition to [the] demurrer that ‘if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend....’” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

However, if “the plaintiff has not had an opportunity to amend the complaint in response to a demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) The face of the FAC does not show that the respondeat superior and negligent hiring causes of action cannot be amended to properly state a claim.

Leave to amend, however, “should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Jenkins v. JPMorgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 535 quoting *Lawrence v. Bank of Am.* (1985) 163 Cal.App.3d 431, 436 multiple citations omitted.) Such is the case with the unfair competition cause of action. The Court does not see how, and Plaintiffs have failed to make any showing that, they can properly state such a cause of action.

As this is the first challenge by BJ’s to the Plaintiffs’ allegations, the Court will grant Plaintiffs leave to amend as to the respondeat superior (first) and negligent hiring/supervision (second) causes of action. Leave to amend is denied as to the unfair competition (B&P § 17200 et seq.) cause of action.

Conclusion

Based on the above, Defendant’s demurrer is **sustained**. Plaintiffs are **granted leave to amend** as to the respondeat superior (first) and negligent hiring/supervision (second) causes of action. Leave to amend is **denied** as to the unfair competition (B&P § 17200 et seq.) cause of action.

11. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT**
FILED BY: BJ'S RESTAURANT INC.
TENTATIVE RULING:

Denied as moot. See line 10.

12. 9:00 AM CASE NUMBER: C25-00276
CASE NAME: CHRISTOPHER SEARS, PHD VS. VIVIANE SIINO, PHD
***HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**
FILED BY: SIINO, VIVIANE, PHD
TENTATIVE RULING:

Summary

Defendant Viviane Siino Ph.D. ("Defendant" or "Siino") Motion for Attorney's fees & Costs against Plaintiff Christopher Sears Ph.D. ("Plaintiff" or "Sears") is **granted** as set forth herein.

Background

On September 16, 2026, Defendant Viviane Siino Ph.D. ("Defendant" or "Siino") filed a Motion for Attorney's fees & Costs against Plaintiff Christopher Sears Ph.D. ("Plaintiff" or "Sears") in the amount of \$23,035 (fees) and \$258.22 (costs) based Cal. Code of Civ. Proc § 425.16(c)(1). The Motion is supported by a Notice, Memorandum of Points and Authorities, and the Declaration of Counsel Joshua Jachimowicz. This Motion is made on the grounds that Plaintiff is prevailing party in the Anti-SLAPP case on four of the five causes of action listed in Plaintiff's complaint. Defendant did not prevail in striking the second cause of action for libel. (See the Court's order granting Defendant's Special Motion to Strike on August 6, 2025.)

On February 3, 2026, Plaintiff filed an opposition, supported by his Declaration, requesting, essentially that the request for fees be either denied or reduced by fifty percent, on the grounds that Defendant did not prevail on the second cause of action and that the fees were excessive.

In reply, Defendant asserts that appointment is not proper under decisional authority, and that a review of the family law case was necessary to prepare for the Anti-SLAPP motion.

Analyses

Cal Code Civ Proc § 425.16(c) permits a prevailing defendant on a special motion to strike to recover that defendant's attorney's fees and costs. Under this provision, "any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (*Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131*. See also *Mann v. Old Time Quality Service, Inc.* (2006) 139 Cal.App4th 328, 338-339.

The decisional law interpreting Section 425.16 is illustrative. In *Dove Audio v. Rosenfeld, Meyer & Susman* (1996) 47 Cal. App. 4th 777, 785 the Court of Appeal held that a trial court did not abuse its discretion in awarding over \$27,000 in attorney fees to a law firm that prevailed in its special motion